officials are frustrated, and vice versa.

In terms of structure, Kennedy's most sophisticated contribution was his refusal to continue the Ex Comm once the missile crisis passed its peak. Reportedly he saw it as an indispensable piece of machinery for a crisis-time, indispensable because so flexible and so removed from vested rights or interests. Its use at any other time would vitiate those qualities. Thus he ordered it disbanded, to the dismay of some members, and the very term "Ex Comm" was barred from current use. In this, although not consciously, he followed Truman's practice at the outbreak of the Korean War.

Kennedy's decision to disband the Ex Comm is expressive of the underlying dilemma. There appear to be no ways whereby a President can be assured routinely, at all times and places, of the information and control he needs while simultaneously assuring to officials the hearings, the due process, the appeals, and the forbearance they require of the White House. Even at the farthest remove from routine, the missile crisis above all, these two assurances seem barely, temporarily compatible. Yet risks of rule lie quite as much in bureaucratic momentum as in presidential misjudgment. Frustrated, uncomprehending bureaucrats can be as much a danger to us all, and to a President, as faults in his own knowledge, or his judgment, or his temperament. The check and balance system we encounter in the Missile Age does not appear to check or balance its destructive hazards. Rather, it may readily enlarge them. For this there is no help in sight from any source except the human qualities of prudence, luck, and fortitude displayed in 1962 by fourteen men for thirteen days.

A Constitutional Issue?

Our Constitution is a product of the eighteenth century. Its authors were men of the Enlightenment and also men of action: political philosophers —mostly at secondhand—with firsthand practical experience. They were intensely conscious of the *paradox of rulership* as manifested by the course of history up to their time. On the one hand, the common good required that political power be placed in some human hands. Only by yielding considerable discretion to a central public authority could citizens secure the common defense, law, order, or personal liberties. But on the other hand, to establish a powerful public authority was to create enormous risks of the misuse of power. As so often before, the rulers, being human and thus fallible, might choose unwisely, or might